

Court No. - 41

Case :- WRIT - C No. - 8164 of 2016

Petitioner :- M/S Radhey Ice Factory

Respondent :- Dakshinanchal Vidhut Vitran Nigam Ltd. And 7 Others

Counsel for Petitioner :- Udai Chandani, Pawan Shukla

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vikram Nath, J.

Hon'ble Amar Singh Chauhan, J.

The petitioner seeks quashing the recovery citation dated 13.01.2016 issued by the respondent no.3, Executive Engineer against the petitioner as well as a direction to respondent no.2 to decide the claim of the petitioner in the light of the order dated 13.03.2014 passed by the Isthai Lok Adalat in P.L.A. Case No.183 of 2013 in the matter of quantum of electricity consumption bill issued.

We may record that Hon'ble the Apex Court in the case of U.P. Power Corporation Ltd. & Ors. Vs. Anis Ahmad reported in (2013)8 SCC 491 has held that the consumer has to seek his remedy within the provision of the Electricity Supply Code, 2005/Electricity Act, 2005. The proceedings initiated before Permanent Lok Adalat are without jurisdiction.

We are of the considered opinion that if the petitioner is not satisfied with the correctness of the bills, he may seek remedy under Section 6.5 of the Electricity Supply Code, 2005.

The writ petition is dismissed with liberty as aforesaid.

Interim order, if any, stands discharged.

Order Date :- 23.2.2016

RPS

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Civil Misc. Withdrawal Application No.120529 of 2017.

Civil Misc. Review Application No.71363 of 2016.

Heard Sri Pawan Shukla, learned counsel for the petitioner-applicant.

The writ petition was dismissed by order dated 23rd February, 2016. The petitioner preferred review petition registered as Review Application No.71363 of 2016. Now the petitioner has moved a withdrawal application registered as Application No.120529 of 2017 praying for dismissal of the review application as withdrawn. The application is supported by affidavit of the proprietor of the petitioner firm. The petitioner apparently now wants to pursue remedy available under the statutory provisions before the Department.

We accordingly allow the withdrawal application and dismiss the review application as withdrawn.

Order Date :- 26.4.2017

Ashutosh